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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV36240

VERONICA

BYNUM, AN INDIVIDUAL RESIDING IN CALIFORNIA, et al. vs GARDAWORLD SECURITY

SERVICES OF CALIFORNIA, INC., A CALIFORNIA CORPORATION, et al.

August

20, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF VERONICA BYNUM'S MOTION FOR A PROTECTIVE ORDER. PLAINTIFF LETICA IRVIN'S MOTION FOR A PROTECTIVE ORDER.

RULING:

The Court grants both Motions.

The Court enters a

Protective Order precluding Defendants from inspecting, and/or accessing data

from, Plaintiffs' mobile devices.

Plaintiffs to give

notice.

I.

BACKGROUND

On December 11, 2025, VERONICA

BYNUM and LETICA IRVIN (Plaintiffs) filed a Complaint against GARDAWORLD

SECURITY SERVICES OF CALIFORNIA, INC. and JOHN BULLOCK (Defendants), listing

Causes of Action for:

1)

HOSTILE WORK ENVIRONMENT (SEXUAL HARASSMENT) IN VIOLATION OF CALIFORNIA GOVERNMENT

CODE §§ 12923, 12940(J) (FEHA), ET SEQ.

2)

FAILURE TO PREVENT AND/OR REMEDY HOSTILE WORK ENVIRONMENT IN VIOLATION OF CALIFORNIA

GOVERNMENT CODE § 12940(K) (FEHA), ET SEQ.

Plaintiffs allege unwelcome

sexual advances by a supervisor during employment.

On July 17, 2026, Plaintiffs

filed their Motions for Protective Order, on grounds that “inspection of and

retrieval of data from both Plaintiffs’ mobile devices” would include

irrelevant data and constitute a fishing expedition into private information, designed

to harass and oppress.

Defendants oppose, contending

that there is no less intrusive means to obtain directly relevant information

other than forensic examinations of the cellphones limited to relevant

information.

II.

LEGAL STANDARD

Courts have discretion to

enter a protective order protecting information on computer after an objecting

party particularly identifies information that should be excluded. (Tbg Ins. Serv. Corp. v. Superior Court

(2002) 96 Cal.App.4th 443, 454.) Once good cause for

production has been shown, the objecting party has the burden to file evidence

to justify objections including those based upon privacy. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 97-98.)

Parties seeking

protective orders regarding electronically stored information on the basis that

it is from a source not reasonably accessible, because of undue burden or

expense, bear the burden of demonstrating those factors, and courts may

nonetheless order the discovery, subject to any limitations imposed under

section 2031.060, subdivision (f), if the demanding parties show good cause.

(Code Civ. Proc., § 2031.060, subds. (c)-(g).)

III.

ANALYSIS

According to Plaintiff

VERONICA

BYNUM, Defendants have no basis to believe that additional electronically

stored information exists beyond that produced, as to Instagram messages between

Plaintiff VERONICA BYNUM and Defendant JOHN BULLOCK.

As for LETICA IRVIN, Plaintiff's

criticism is that Defendants' discovery is not limited to Snapchat messages

between Plaintiff and Defendant JOHN BULLOCK but involves the whole cellphone.

Plaintiffs also contend

that Defendants never informally agreed to discovery through

less intrusive means and narrower than a drastic forensic examination of entire

cell phones.

Regarding one Opposition,

Defendant alleges “[Plaintiff] Irvin’s device may be the only reasonably

available source of the communications themselves and related forensic evidence

regarding their existence, content, timing, and completeness. Garda therefore seeks a narrowly tailored

inspection of Irvin’s cellphone for Snapchat messages exchanged between Irvin

and Bullock during their employment, as well as associated application data and

other artifacts of those communications.” (Opposition, 2:21-26.)

As for the other

Opposition, concerning Plaintiff BYNUM: “The incomplete production raises

serious questions as to what relevant communications have been withheld and

underscores the need for discovery sufficient to verify all responsive

communications have been identified and produced.” (Opposition, 2:22-25.)

There is a privacy

interest in cell phone content, including texts, which entails balancing

competing interests against any public right of access. (Saunders v.

Superior Court (2017) 12 Cal.App.5th Supp. 1, 22.) “[V]iewing confidential

computer files implicates dignity and privacy interests.” (People v. Endacott (2008) 164 Cal.App.4th 1346, 1350.) Metadata is hidden information, electronically stored, and may include information about the computer file author, and times of creating and modifying the file, and can be discoverable, if relevant and not privileged. (Ellis v. Toshiba Am. Info. Sys., Inc. (2013) 218 Cal.App.4th 853, 859 fns. 5-6.)

Courts must carefully

balance a right of privacy against the interest in having just litigation. (Pioneer Electronics (USA), Inc. v. Superior Court (2007) 40 Cal.4th 360, 371; Valley

Bank of Nevada v. Superior Court (1975) 15 Cal.3d 652, 657.) “Mere

speculation as to the possibility that some portion of the records might be

relevant to some substantive issue does not suffice” for showing direct

relevance as to private information sought in discovery. (Davis v. Superior Court (1992) 7 Cal.App.4th 1008, 1017-1020

[directing trial court to grant motion to quash as to discovery request that

was not narrowly drawn to enable the court to evaluate the appropriate extent

of disclosure]. Cf. Bd. of Registered Nursing v. Superior Court (2021)

59 Cal.App. 5th 1011, 1038 [“defendants have not shown that these broad

categories are reasonably calculated to lead to the discovery of admissible

evidence. Moreover, even if these categories do contain some records that would

be discoverable, their probative value is vastly outweighed by the privileged

and private nature of the other records swept up in the production.”].) Absent

showings of direct relevance, compelling need, and unavailability of

alternative sources, a trial court only could find that a privacy interest

prevails. (Ombudsman Services of No. Cal.

v. Superior Court (2007) 154 Cal.App.4th 1233, 1251, disapproved on other grounds by Williams v. Superior Court (2017) 3

Cal.5th 531, 557.)

While Defendants propose

limited forensic searches, broad access to data would occur in the process. For

instance, Defendants state: "Because Snapchat data may be reflected not only in

visible messages but also in application databases, cached files, logs,

notifications, metadata, backups, and other device artifacts, a targeted

forensic review is reasonably likely to reveal relevant information concerning

the existence, timing, content, and preservation of the communications at issue."

(Opposition re LETICIA IRVINS, 8:7-12.) Similarly, Defendant "has narrowed the

scope of its requested Demand for Inspection by limiting the request to Bynum's

Instagram communications with Bullock during the period of their employment and

her communications with the individuals she identifies as having knowledge as

to the allegations in her complaint." (Opposition, 7:18-21.) However, that

would still entail a forensic inspection with the whole cellphone. (Ibid.,

7:28).

The Court's own research regarding

forensic searches reveals a dearth of California citable law on point. One defense-cited

opinion distinguishably involved discovery sanctions issues, and “[t]he trial

court, however, entered a stipulated protective order providing that the

production of any electronic information did not waive any of the producing

party's claims of privacy,...” (Ellis v. Toshiba America Information Systems,

Inc. (2013) 218 Cal.App.4th 853, 878.) (Underscoring added.) There is no

such stipulation here. And there is no agreement to any neutral expert to do a

confidential and unbiased forensic examination. Another cited case is similar.

(See Electronic Funds Solutions, LLC v. Murphy (2005) 134 Cal.App.4th

1161, 1168 [“The stipulation expressly required the production of all

electronic data, including e-mail messages. The trial court entered the

stipulation as a court order.”].) Also, Defendants cite a federal trial court

ruling, Playboy Enters., Inc. v. Welles (S.D. Cal. 1999) 60 F.Supp. 2d

1050, 1051, 1053-1054, which does not govern in California courts. “California

law governs discovery disputes that arise in our courts.” (Unzipped Apparel, LLC v. Bader (2007) 156 Cal.App.4th 123, 130.)
Further,

District Court rulings can be cited going both ways in favor of either side in

this case. (Cf., e.g., Villarroel v. Staples, Inc. (N.D.Cal. Sep. 20,

2024, No. 23-cv-03717-PCP (VKD)) 2024 U.S.Dist.LEXIS 170412, at *9 [“Staples

does not explain why records of Ms. Villarroel's cell phone communications to

or from Staples' personnel for nearly a year preceding her resignation are

relevant to a claim or defense in this action.”].)

Here, the Court finds

that Defendants have not shown that all private content on the cell phones

contains directly relevant evidence regarding alleged harassment but only

speculate that some may exist, which does not suffice for overbroad privacy

intrusions while attempting to limit the discovery access to all data to just directly

relevant data regarding alleged harassment.

Also, the Court

determines that there are less drastic alternative discovery options.

Defendants need not be the ones to do unlimited searches of the cellphones,

because Plaintiffs are statutorily required to confirm doing so in their

discovery responses. Specifically, with regard to document requests, a response

expressing an inability to comply shall state that a diligent search and

reasonable inquiry was made to locate the items, and the reason for an

inability to comply, including that the item never existed, was lost or stolen,

was destroyed, or is not in respondent's possession, along with the identity

and address of anyone believed to have the document. (Code Civ. Proc., §

2031.230.)

Defendants impermissibly

also seek to, “question the completeness and integrity of Bynum’s production....”

(Opposition, 9:19-20.) However, a motion to compel further discovery responses cannot be granted based on the reason that verified answers served are untrue.

(Holguin v. Superior Court (1972) 22

Cal.App.3d 812, 820, 821.) The service of willfully false discovery responses

is not covered by the current version of the Civil Discovery Act. (Saxena v. Goffney (2008) 159 Cal.App.4th

316, 333.) There is no statutory requirement for respondents to correct

untruthful discovery responses, but instead an intentional failure to

amend the responses creates the risks of prosecution for perjury, or monetary

sanctions. (Guzman v. General Motors Corp.

(1984) 154 Cal.App.3d 438, 442-443, fn. 4.) A respondent cannot be compelled to

admit a fact in discovery, even where its truth is obvious. (Wimberly v. Derby Cycle Corp. (1997) 56

Cal.App.4th 618, 634; Smith v. Circle P

Ranch Co. (1978) 87 Cal.App.3d 267, 273.) And discovery of information

about credibility must be reasonably calculated to lead to the discovery of

admissible evidence, which requires the existence of a contradictory statement

that is not collateral to the merits, particularly where direct relevance is

required to overcome a right of privacy. (Mendez v. Superior Court (1988)

206 Cal.App.3d 557, 576–577, disapproved of on other grounds by Williams v.

Superior Court (2023) 3 Cal. 5th 531, and abrogated by Doe v. Superior

Court (2023) 15 Cal.5th 40.)

In summary, Defendants do

not qualify for conducting forensic examinations of Plaintiffs' cell phones.

IV.

CONCLUSION

Accordingly, the Court grants

both Motions for Protective Order, for reasons stated herein.